

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
SASHA POLANCO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and P.O FRANCIS CONEJO,Defendants.
-----X

Index No.:

Date purchased:

Plaintiff designates

BRONX

County as the place of Trial.

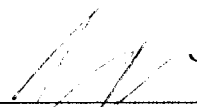
SUMMONS WITH NOTICE

The basis of the venue is

Place of occurrence.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
June 13, 2018

James F. Ross, Esq. of
THE LAW OFFICES OF ROSS
& HILL, PLLC.
Attorneys for Plaintiff
SASHA POLANCO
16 Court Street, 35th Floor
718-855-2324

Notice: The nature of this action: negligence; personal injuries; false arrest; false imprisonment; unlawful detention; assault and battery;

The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from August 4, 2017 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
SASHA POLANCO,

Index No.:

Date purchased:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and P.O. FRANCIS CONEJO,

Defendants.
-----X

Plaintiff herein, by his attorneys, **ROSS and HILL**, complaining of the above-named Defendant, respectfully shows to the Court and allege the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the County of Bronx, City and State of New York.
2. At all times hereinafter mentioned, defendant, The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. The Police Department of the City of New York is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.
4. That at all times hereinafter mentioned defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department including all the police officers thereof.

5. That at all times herein mentioned defendant, Police Officer Francis Conejo was a police officer employed by the New York City Police Department and at all times herein mentioned was acting in the scope of his employment as a police officer.

6. On September 6, 2017 plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within 90 days of the incident giving rise to this law suit.

7. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

8. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

9. That on August 4, 2017 at approximately 3:00 pm, P.O. Francis Conejo, without reasonable or probable cause, falsely arrested plaintiff.

10. That the arrest of plaintiff was without reasonable or probable cause and constituted a false arrest of plaintiff.

11. The incident as afore described resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

12. The incident as aforesaid resulted from the intentional wrongful act of defendant, Police Officer Francis Conejo and other police officers whose names are not currently known to plaintiff.

13. As a result of the foregoing, plaintiff sustained damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 - 13 hereof with the same force and effect as though fully set forth herein at length.

15. After falsely arresting plaintiff, police officers handcuffed plaintiff and restrained her and unlawfully detained plaintiff in police custody.

16. The unlawful detention of plaintiff caused said plaintiff pain, humiliation, personal injury and suffering.

17. As a result of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD CAUSE OF ACTION

18. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 - 13 and 14-17 hereof with the same force and effect as though fully set forth herein at length.

19. That after falsely arresting plaintiff, plaintiff was brought to the police precinct and then to Central Booking and was unlawfully imprisoned, constituting a false imprisonment of plaintiff.

20. That the false imprisonment of plaintiff caused said plaintiff personal injury, pain, humiliation and suffering.

21. As a result of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A FOURTH CAUSE OF ACTION

22. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-13, 14 - 17 and 18 - 21 hereof with the same force and effect as though fully set forth herein at length.

23. In placing plaintiff under arrest, police officers used excessive and unjustified force, intimidated plaintiff and injured plaintiff.

24. The actions of the arresting officers constituted an assault and battery.

25. As a result of the assault and battery committed on plaintiff, plaintiff sustained personal injuries.

26. As a result of the injuries inflicted on plaintiff, plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A FIFTH CAUSE OF ACTION

27. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-13, 14 - 17, 18 - 21 and 22-26 hereof with the same force and effect as though fully set forth herein at length.

28. The actions of Police Officer Francis Conejo were wanton, cruel and reckless, and evinced a complete and utter disregard of plaintiff's rights and safety.

29. As a result of the foregoing, plaintiff is entitled to punitive damages on all the above causes of action.

WHEREFORE, plaintiffs demand judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
June 13, 2018

Yours, etc.,

A handwritten signature in black ink, appearing to be 'JF Ross', written over a horizontal line.

James F. Ross, Esq. OF

ROSS & HILL, ESQS.

Attorneys for Plaintiff

16 Court Street, 35TH Floor

Brooklyn, New York 11241

(718) 855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

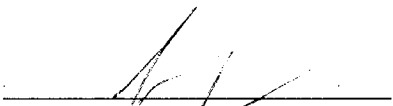
I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am a partner in the firm of Ross and Hill, Esqs., attorneys of record for plaintiff(s) in this action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiff(s) is that plaintiff(s) is presently outside the County in which your affirmant maintains offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiff(s), investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: Brooklyn, New York
June 13, 2018



James F. Ross, Esq.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SASHA POLANCO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and P.O. FRANCIS
CONEJO,

Defendants.

SUMMONS & COMPLAINT

LAW OFFICES OF ROSS AND HILL, PLLC.

Attorneys for Plaintiff

Office and Post Office Address

16 Court Street, 35th Floor

Brooklyn, New York 11241

Tel (718) 855-2324

Fax (718) 855-4617

To:

Service of a copy of the within
is hereby admitted.

Dated:

Attorney(s) for
